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Supreme Court Court of Appeals
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IN THE SUPREME COURT OF THE STATE OF IDAHO

STATE OF IDAHO, Plaintiff-Respondent, v. PIERRE J. SAVIERS, Defendant-Appellant.	NO. 40503 BLAINE COUNTY NO. CR 2012-368 APPELLANT'S BRIEF IN SUPPORT OF PETITION FOR REVIEW

STATEMENT OF THE CASE

Nature of the Case

Pierre J. Saviers requests that this Court grant review in this matter, which relates to the Idaho Court of Appeals Opinion in *State v. Saviers*, Docket Number 40503, 2014 Published Opinion No. 13 (Feb. 20, 2014) ("Opinion"). Review should be granted as this case presents an issue of first impression for this Court and the Court of Appeals. In the Opinion, a unanimous panel of the Court of Appeals held that the district court did not err when it determined that Mr. Saviers' two prior convictions for violating a no-contact order, to which he pleaded guilty and for which he was sentenced

on the same day, could not be considered as one conviction for the purposes of the felony enhancement provided for in I.C. § 18-920(3). Or in other words, the Court of Appeals affirmed the district court's refusal to apply the holding from *State v. Brandt*, 110 Idaho 341 (Ct. App. 1986) (holding that when multiple felony convictions entered on the same day or charged in the same information they should be treated as one conviction for the purposes of the persistent violator statute, I.C. § 19-2514), to I.C. § 18-920(3).

Review should also be granted because the Opinion is inconsistent with the Court of Appeals' holding in *Brandt*. In the Opinion, the Court of Appeals refused to extend the *Brandt* rule to I.C. § 18-920(3), because it determined that the legislative intent behind the persistent violator statute, I.C. § 19-2514, is "markedly different" from the legislative intent behind I.C. § 18-920(3). (Opinion, pp.4-5.) Specifically, it reasoned that I.C. § 19-2514 favors rehabilitation between criminal offenses, providing criminal defendants an opportunity to reform in light of enhanced penalties, while I.C. § 18-920(3) does not allow for rehabilitation between offenses and was intended to punish repetitive misdemeanor violators harshly regardless of the time between offenses. (Opinion, pp.4-5.) However, in a footnote, the Court of Appeals noted it would consider applying the *Brandt* Rule to I.C. § 18-920(3) if the prior violations of a no-contact order occur on the same day and/or are charged in the same information. (Opinion, p.5 n.3.) This is inconsistent with *Brandt* because in that case the Court of Appeals adopted the *Brandt* rule then refused to apply to the facts of that case. Either the legislative intent of I.C. § 19-2514 and I.C. § 18-920(3) are similar and the *Brandt* rule should have been applied to I.C. § 18-920(3) or they are dramatically different, as

held in the Opinion, and the *Brandt* rule should not be extend to I.C. § 18-920(3). The fact pattern of an individual case does not alter the legislative intent of a statute.

Statement of the Facts & Course of Proceedings

Mr. Saviers was very depressed and tried to kill himself by shooting himself in the chest. (05/26/11 Tr., p.21, L.25 – p.22, L.7.) When Mr. Saviers was coming out of the coma, that resulted from his suicide attempt, his wife got him to sign a divorce decree awarding her all of his assets. (05/26/11 Tr., p.25, Ls.1-10; 10/07/11 Tr., p.65, Ls.15-18; 10/11/11 Tr., p.94, L.18 – p.95, L.1.) Mr. Saviers said that at the time he signed the divorce decree his cognitive functioning was so low he could not count backwards from seven and did not know the name of the current president. (06/23/11 Tr., p.36, Ls.9-12.) His former wife was aware of the fact Mr. Saviers didn't know what he was signing. (06/23/11 Tr., p.37, Ls.18-24.) According to his counsel at the time, "[s]he took the house, she took everything. And I have read that decree. It is not ethically legal." (05/26/11 Tr., p.25, Ls.7-8.)

As a result of other criminal charges related to his depression, failed suicide attempt, and divorce, a magistrate entered a no contact order between Mr. Saviers and his former wife. (04/13/11 Tr., p.13, Ls.11-17; 07/08/11 Tr., p.46, Ls.22-46.) In two different cases, Mr. Saviers was charged with two misdemeanor counts of violation of the no contact order, one of which occurred on July 7, 2011, and the other on June 21, 2011.[1] (07/08/11 Tr., p.44, Ls.9-14, p.46, L.22 – p.47, L.9.) At a consolidated hearing, Mr. Saviers pleaded guilty to two misdemeanor charges of violating a no contact order.

[1] The State also alleged that Mr. Saviers violated the no contact order on May 26, 2011. (07/08/11 Tr., p.47, Ls.2-3.) However, the State dismissed that charge. (07/08/11 Tr., p.47, Ls.3-4.)

(10/11/11 Tr., p.79, Ls.11-18.) At that same hearing, Mr. Saviers was sentenced on both of the no contact order cases and the magistrate continued the no contact order. (10/11/11 Tr., p.109, Ls.12-14, p.112, Ls.2-24.)

Mr. Saviers was subsequently charged, by information, with violation of the no contact order. (R., pp.40-41.) The State also filed a felony enhancement based on the two convictions in the foregoing cases. (R., pp.40-41.) Pursuant to a plea agreement, Mr. Saviers pleaded guilty to violating the no contact order and admitted to the two prior violations of the no contact order. (05/23/12 Tr., p.5, L.8-24.) Mr. Saviers did not plead guilty to the felony enhancement; rather, a bench trial was held to decide a legal issue, namely, whether the two prior convictions for violating the no contact order constituted one or two convictions for purposes of the felony enhancement. (05/23/12 Tr., p.7, L.24 - p.8, L.7.) Mr. Saviers argued, in reliance on *State v. Brandt*, 110 Idaho 341 (Ct. App. 1986), and its progeny, that the two convictions should only constitute one conviction for enhancement purposes, as they relateed to the same victim and were adjudicated at the same hearing. (*See generally* 05/30/12 Tr.) Based on a line of cases involving the crime of driving under the influence (*hereinafter,* DUI), the district court concluded that Mr. Saviers' act was a felony. (*See generally* 06/18/12 Tr.) Thereafter, the district court imposed a unified sentence of five years, with three years fixed, but suspended that sentence and placed Mr. Saviers on probation. (R., pp.81-85.) Mr. Saviers timely appealed. (R., pp.95-97.)

On appeal, the Court of Appeals refused to apply the *Brandt* rule to I.C. § 18-920(3) because it determined that the persistent violator statue, I.C. § 19-2514, had different policy goals than I.C. § 18-920(3). (Opinion, pp.4-5.) However, the Court of

Appeals indicated that it would consider applying the holding from *Brandt* to I.C. § 18-920(3) if it was presented with an appeal that had what it determined to be an appropriate fact pattern. (Opinion, p.5 n.3.)

ISSUE

Should review be granted, as the Idaho Court of Appeals' Opinion affirming Mr. Saviers' Judgment of Conviction decided an issue of first impression and is inconsistent with a prior Idaho Court of Appeals Opinion?

ARGUMENT

Review Should Be Granted As The Idaho Court of Appeals' Opinion Affirming Mr. Saviers' Judgment Of Conviction Decided An Issue Of First Impression And It Is Inconsistent With A Prior Idaho Court Of Appeals Opinion

A. Introduction

This Court should grant review because this case presents an issue of first impression. Additionally, review should be granted because the Opinion is inconsistent with the Court of Appeals' prior holding in *Brandt*. In *Brandt*, the Court of Appeals adopted the majority rule which treats multiple felonies which occur in a short period of time and charged in the same information, as one felony for the purpose of a persistent violator enhancement. In *Brandt*, the Court of Appeals adopted this rule then refused to apply it to the facts of Brandt's case because it determined his prior offenses did not fall within the ambit of the rule. In this case, the Court of Appeals refused to apply the *Brandt* rule based on its determination that the persistent violator statute, I.C. 19-2514, and the felony charging enhancement statute for multiplied violations of a no contact order, I.C. § 18-920, have differing legislative intents. However, the Court of Appeals noted that it would consider applying the *Brandt* rule to I.C. 18-920(3) in a case where the violations of a no contact order occurred on the same day and/or were charged in the same information.

B. Standards

The Idaho Appellate Rules provide that petitions for review may be granted only "when there are special and important reasons" for doing so, but, ultimately, the decision of whether to grant a given petition lies within the sound discretion of the

Supreme Court. I.A.R. 118(b). This exercise of discretion is not completely unfettered though. Rule 118(b) provides a non-exhaustive list of five factors which must be considered in evaluating any petition for review:

1) Whether the Court of Appeals has decided an issue of first impression;

2) Whether the Court of Appeals' decision is inconsistent with precedent from the Idaho Supreme Court or the United States Supreme Court;

3) Whether the Court of Appeals' decision is inconsistent with its own prior decisions;

4) Whether the Court of Appeals' actions are so unusual as to call for the Supreme Courts' exercise of its supervisory authority; and

5) Whether a majority of the Court of Appeals has certified that further appellate review is desirable.

I.A.R. 118(b). Mr. Saviers argues that this Court should grant review because this case presents an issue of first impression, and because Court of Appeals' Opinion is inconsistent with precedent from the Court of Appeals.

C. When a Defendant Twice Violates A No Contact Order Against The Same Victim In Rapid Succession And Those Offenses Are Adjudicated At the Same Time They Should Be Considered One Conviction For The Purposes Of The Felony Enhancement

There is a line of Idaho Court of Appeals cases which holds that a persistent violator enhancement is improper in the event a defendant's prior convictions are entered on the same day or charged in the same information. The policy behind this rule is to afford a defendant time to rehabilitate between convictions and warn the defendant about the persistent violator statute. *Brandt*, 110 Idaho at 344. Mr. Saviers recognizes that this line of cases has, thus far, only been applied to the persistent violator statute, I.C. § 19-2514, and not to statutes which make felonies out of

successive misdemeanors. However, Mr. Saviers argues that the same policy considerations are at issue when a defendant commits multiple misdemeanors in a short period of time, and it makes little sense to afford a criminal that commits multiple felonies a greater chance for rehabilitation than a person who has only committed multiple misdemeanors.

The relevant portion of Idaho Code Section 18-920(3) states that "[a]ny person who pleads guilty to or is found guilty of a violation of this section who previously has pled guilty to or been found guilty of two (2) violations of this section . . . shall be guilty of a felony . . . ." I.C. § 18-920(3). Similarly, the relevant portion of Idaho Code Section 19-2514 states that "[a]ny person convicted for the third time of the commission of a felony . . . shall be considered a persistent violator of law . . . ." I.C. § 19-2514. While interpreting the later statute the Idaho Court of Appeals held, in concert with the majority of jurisdictions, "that convictions entered the same day or charged in the same information should count as a single conviction for purposes of establishing habitual offender status." *Brandt*, 110 Idaho at 344. In *Brandt*, Brandt escaped from jail while awaiting sentencing on three separate felonies. *Id.* at 342. As a result of that escape from jail, Brandt was convicted of "escape, injury to jail property, assault, and robbery." *Id.* It was also determined that Brandt was a persistent violator, as he had three previous felony convictions for which he was awaiting sentencing at the time of his escape. *Id.* at 342-343. Brandt appealed and argued that the persistent violator statute was not applicable because the three previous convictions "had been entered in a single proceeding all on the same day and, as such, the three convictions should be considered as one conviction for the purposes of I.C. § 19-2514." *Id.* at 343.

After the Court of Appeals adopted the rule "that convictions entered the same day or charged in the same information should count as a single conviction for purposes of establishing habitual offender status," it went on to hold that "the nature of the convictions in any given situation must be examined to make certain that the general rule is appropriate." *Id.* at 344. After examining the nature of Brandt's prior convictions the Court of Appeals determined that they fall outside of the rule and they were considered as three separate convictions. *Id.* In coming to that conclusion, the Court of Appeals noted that the three prior convictions were charged in separate informations, involved separate victims, and occurred on different days. *Id.* The Court also reasoned that Brandt was initially charged as a persistent violator and since that charge was dismissed during the prior plea negations he was on notice "about the consequences of repetitive criminal conduct." *Id.* Based on the foregoing factors, the Court of Appeals ultimately held that Brandt "fits well within the scope of I.C. § 19-2514." *Id.*

In this case, the district court and the Court of Appeals refused to extend the holding from *Brandt* to Mr. Saviers' case because it determined that I.C. § 18-920(3) and I.C. § 19-2514 have differing legislative intents. The Court of Appeals held that this distinction can be drawn from the plain language of the two statutes. (Opinion, pp.4-5.) According to the Court of Appeals, I.C. § 19-2514 favors rehabilitation and an opportunity to reform between convictions because the law disfavors life sentences. (Opinion, p.4; 06/18/12 Tr., p.43, Ls.6-16.) Due to this general policy which disfavors life sentences, "multiple felonies committed on the same day or in the same course of conduct generally do not result in a persistent violator finding." (Opinion, p.4.) The Court of Appeals also held that "it is contrary to these rehabilitative considerations and

fundamental fairness[2] to allow a first time offender to meet the required number of felony convictions and face potential life in prison as the result of a single criminal occurrence or course of conduct." (Opinion, p.4.)

The Court of Appeals then held that the plain language of I.C. § 18-920(3) has a different legislative intent, which punishes repetitive misdemeanor violations harshly "regardless of how little time lapses between violations." (Opinion, p.4.) The Court of Appeals provided three policy distinctions between the statutes. First, it held that I.C. § 18-920(3) includes a five year timeframe "in which the repeated violations must occur for the enhanced penalties to apply," which indicates a policy to punish repeat violators "especially if they are in close in time." (Opinion, p.4.) Second, it held that since a third violation of I.C. § 18-920(3) does not carry with it the potential for a life sentence, the "considerations of notice and rehabilitation discussed in *Brandt* as being applicable to I.C. § 19-2514 do not apply to I.C. § 18-920(3)." (Opinion, pp.4-5.) Third, it held that, I.C. § 18-902(3) applies only to one class of offenses, *i.e.* violations of a no contact order, while I.C. § 19-2514 applies to all classes of felonies. (Opinion, pp.5.) "This eliminates any considerations of difference in crime and indicates a policy of more harshly punishing repeated no-contact order violations, which are usually against the same victim." (Opinion, p.5.)

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[2] While not argued below and not contained in prior Court of Appeals opinions, if the Court of Appeals use of the phrase "fundamental fairness" was meant to invoke due process protections of the 14th Amendment, Mr. Saviers submits that those same 14th Amendment due process protections should equally apply to defendants that are facing felony convictions who violate no contact orders in the same course of conduct. Mr. Saviers also submits that he did violate the no contact order in the same course of conduct, similar to the defendant in *State v. Harrington*, 133 Idaho 563 (Ct. App. 1999), which will be discussed in further detail below.

The Opinion is inconsistent with the Court of Appeals prior holding in *Brandt* because it indicated it would potentially apply the *Brandt* rule if it was presented with specific circumstances. Specifically, the Court of Appeals noted that Mr. Saviers "did not allege that the prior violations occurred on the same day or were charged in the same information. Accordingly, we limit our holding to situations where the judgments of conviction for violations occurring on different days are entered on the same day." (Opinion, p.5 n.3.) As mentioned above, the *Brandt* Court adopted the rule which treats multiple convictions entered on the same day or charged in the same information as a single conviction for the purposes of establishing habitual offender status. *Brandt*, 154 Idaho at 344. However, the *Brandt* Court refused to apply that rule to Brandt's prior convictions because they were charged in separate informations, involved separate victims, occurred on different days and Brandt was on notice of the persistent violator statue before he committed his last felony offense. *Id.* Here, the Court of Appeals refused to apply the *Brandt* Rule to I.C. § 18-902(3) because it determined that has I.C. § 18-920(3) has differing legislative intent than I.C. § 19-2514, but, at the same time, indicated it would apply the *Brandt* rule if it was presented with a case with the appropriate fact pattern or procedural posture. In order to be consistent with its holding in *Brandt*, the Court of Appeals should have applied the *Brandt* rule to I.C. § 18-920(3), then determined whether Mr. Saviers falls within the ambit of the rule.

Additionally, the Court of Appeals' determination that it would apply the *Brandt* rule to a case where a defendant violated a no contact order multiple times on the same day, or if the violations were charged in the same information, is inconsistent with its own holding in the Opinion. The Court of Appeals held that two of the policies behind

I.C. § 18-920 is to punish offenders more harshly when they violate no contact order in a short period of time against the same victim. However, the Court of Appeals held that defendants that violate no contact orders on the same day should benefit from the rehabilitative and notice polices behind the *Brandt* rule. (Opinion, p.5 n.3.) It is inconsistent to hold that the policy behind I.C. 18-920(3) is to punish offenders more harshly when they violate no contact orders in short periods of time and then hold that defendants that violate no contact orders multiple times on the same day should get the benefit from the *Brandt* rule. Moreover, defendants that violate a no contact order on the same day are most likely to be violating no contact orders against the same victim.

The district court provided its own unique reasoning when it refused to apply the *Brandt* rule to I.C. § 18-902(3). The district court reasoned, in reliance on *State v. Craig*, 117 Idaho 983 (1990), and the DUI statute, I.C. § 18-8004, that the policy behind the misdemeanor charging enhancement statutes are a legislative command intended to consider three misdemeanors a felony no matter how close in time they are committed. (06/18/12 Tr., p.43, L.17 - p.45, L.21.)

The district court's reliance on the DUI line of cases is misplaced because DUI offenders will generally be put on notice about the increasing severity of their punishments if they continue to drink and drive. When a defendant is being charged with multiple DUI offenses, there will typically be an intervening arrest between each DUI, as the evidence for a DUI naturally dissipates due to the body's natural metabolic processes, *see State v. Carr*, 128 Idaho 181, 184 (Ct. App. 1995), and, therefore, DUI offenders are generally arrested between offenses as DUI offenders must be caught in the act or close to the act, in order for the State to have enough evidence for a

conviction. When DUI offenders get arrested they go through the booking process and are warned about the penalties associated with future DUI offenses. In this context, the notice policy behind the *Brandt* rule has been satisfied. However, in the context of a person who violates a no contact order, the evidence does not dissipate and defendants, like Mr. Saviers, could violate a no contact order many times before an arrest. Such offenders should get the benefit of the *Brandt* rule so they are put on notice that multiple violations of a no contact order will result in a felony conviction. In this case, the notice policy of the *Brandt* rule was not satisfied as the district court made a factual finding that Mr. Saviers was not on notice that he could be convicted of a felony for multiple violations of the no contact order. (06/18/12 Tr., p.30, Ls.6-14.)

The district court and the Court of Appeals' refusal to extend the protections of the *Brandt* rule to I.C. § 18-920(3) is not consistent with the rehabilitative policy espoused by the *Brandt* Court. *Brandt*, 110 Idaho at 344. It makes little sense to afford rehabilitative opportunities to a person who commits multiple felonies in a short period of time and deny the same opportunities to an offender who commits multiple misdemeanors in a short period of time because misdemeanor offenders pose less of a risk to society. For example, in *State v. Harrington*, 133 Idaho 563 (Ct. App. 1999), the Court of Appeals held that Harrington fell within the protections of the *Brandt* rule where Harrington was convicted of burglarizing a store on two separate occasions. *Id.* at 565-566. Mr. Saviers' two violations of the no contact order are not an example of great behavior. However, Mr. Saviers' offenses are relatively minor when compared to Harrington's decision to burglarize a store two times. When compared to Harrington,

Mr. Saviers is a person in a better position to be afforded time to rehabilitate between offenses.

In the event this Court decides to extend the application of the *Brandt* rule to I.C. § 18-920, then the next step is to answer the question of whether Mr. Saviers' prior convictions fall within the ambit of the rule. This is a two step process in which Mr. Saviers must first establish that, procedurally, his two violations were treated as one. *Brandt*, 110 Idaho at 344 ("[C]onvictions entered the same day or charged in the same information should count as a single conviction for purposes of establishing habitual offender status." (emphasis added)). *Brandt*, 110 Idaho at 344. Mr. Saviers recognizes that he was separately arraigned on both of the charges. (*See generally* 06/23/11 Tr.; 07/08/11 Tr.) However, Mr. Saviers entered his guilty plea to both charges at the same hearing and was sentenced on both on the same day. (10/11/11 Tr., p.79, Ls.11-18, p.112, Ls.2-24.) Mr. Saviers also recognizes that the convictions for the no contact orders were file-stamped on separate days. (State's Exhibit 1; State's Exhibit 2.) However, they are virtually identical and they were entered with twenty-four hours of each other. (State's Exhibit 1; State's Exhibit 2.) Additionally, the district court found the difference in dates between the file stamps was immaterial. (06/18/12 Tr., p.30, L.15 - p.31, L.4.) As such, Mr. Saviers' two convictions should be treated as one for the purposes of the *Brandt* rule.

The second step of the analysis is to determine whether the nature of the two convictions are as such that they should be treated as one. In *Brandt*, the Court of Appeals refused to treat Brandt's prior convictions as one, even though the convictions were entered on the same day, because the offenses occurred on different days,

involved different victims, occurred in different locations, and Brandt was on notice about the persistent violator statute prior to his escape. *Brandt*, 110 Idaho at 344. Similarly, in *State v. Mace*, 133 Idaho 903 (Ct. App. 2000), the Court of Appeals refused to apply the *Brandt* rule because the prior offenses were unrelated, occurred on different dates, and in different counties. *Id.* at 907. However, the Court of Appeals did apply the *Brandt* rule in *Harrington*, *supra*, where two prior burglaries involved the same victim but occurred on different days. *Harrington*, 133 Idaho at 565-566. Even though Harrington's charges were filed in separate informations, the Court of Appeals concluded that "Harrington's circumstances fit squarely within the intended scope of *Brandt*'s general rule." *Id.* at 565. The Court of Appeals also applied the *Brandt* rule in *State v. Clark*, 132 Idaho 337 (Ct. App. 1999), even though there were three children sexually victimized, because the information did not indicate that the offenses occurred on different days or in different places. *Id.* at 339-340.

In this case, the nature of Mr. Saviers' prior convictions are virtually identical to those of Harrington's prior convictions. Harrington was arrested while attempting to burglarize a grocery store. *Id.* During his interrogation he admitted to burglarizing the same store ten days earlier. *Id.* Similarly, Mr. Saviers violated the same no contact order against the same victim two times over a period of about two weeks. (07/08/11 Tr., p.44, Ls.9-13, p.47, Ls.6-7.) Mr. Saviers' is also in a better position to invoke the *Brandt* rule than Clark, who victimized three separate victims, because Mr. Saviers' crimes against the same victim. According to the logic of the *Harrington* Court, Mr. Saviers squarely fits within the scope of *Brandt*'s general rule. Finally, and as mentioned above, the district court made a factual finding that Mr. Saviers was not on

notice that he could be convicted for a felony for multiple violations of the no contact order. (06/18/12 Tr., p.30, Ls.6-14.)

In sum, review should be granted because this case presents an issue of first impression and because the Court of Appeals' Opinion is inconsistent with the holding and application of the *Brandt* rule to the facts if Brandt's case. Moreover, the dual policies behind the *Brandt* rule should be extended to protect defendants with prior violations of no contact orders. This class of defendant is different from DUI offenders because DUI offenders are generally arrested between offenses and, therefore, put on notice that future DUI offenses carry increased penalties. Absent such a protection, a person with no criminal history that makes three phone calls, over three days, in violation of a no contact order could be charged with a felony for the third call. Such a defendant should be afforded the protections of the *Brandt* rule so as to be put on notice that a future violation of a no contact order would constitute a felony and given the opportunity to change their behavior. Therefore, the district court erred when it failed to extend the protections of the *Brandt* rule to Mr. Saviers.

CONCLUSION

Mr. Saviers respectfully requests that review be granted. In the event review is granted, Mr. Saviers respectfully requests that this case be remanded for sentencing on a misdemeanor.

DATED this 25th day of April, 2014.

SHAWN F. WILKERSON
Deputy State Appellate Public Defender

CERTIFICATE OF MAILING

I HEREBY CERTIFY that on this 25th day of April, 2014, I served a true and correct copy of the foregoing APPELLANT'S BRIEF IN SUPPORT OF PETITION FOR REVIEW, by causing to be placed a copy thereof in the U.S. Mail, addressed to:

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ROBERT J ELGEE
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